PENDING ISSUES BEFORE THE LEGAL SUB-COMMITTEE OF THE UNITED NATIONS COMMITTEE ON THE PEACEFUL USES OF OUTER SPACE

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The present article consists mainly of a summary of views expressed at the sixteenth (1977) session of the Legal Sub-Committee of the Committee on the Peaceful Uses of Outer Space, held from March 14 to April 8 this year, concerning the unresolved issues of the following priority items on its agenda: (1) draft treaty relating to the moon; (2) elaboration of principles governing the use by states of artificial earth satellites for direct television broadcasting; and (3) legal implications of remote sensing of the earth from space. A brief description is also given to the fourth item, *i.e.*, "matters relating to the definition and/or delimitation of outer space and outer space activities," which did not have priority and was not discussed in any detail in the Sub-Committee.

I. DRAFT TREATY RELATING TO THE MOON

Three main issues arising from the preparation of a treaty relating to the moon have been pending since 1973.[1] These are: the question of the scope of the treaty, the information to be furnished on missions to the moon, and the legal status of the natural resources of the moon. The Working Group established by the Legal Sub-Committee to deal with the draft treaty had, since 1974, focused its attention on the question of the natural resources which was generally regarded as the key issue whose solution could facilitate an agreement on the other two issues.

It was generally agreed that an international regime should be established to govern the exploitation of natural resources of the moon when such exploitation becomes feasible. The main question on which no agreement could be reached is whether the moon and its natural resources should be the common heritage of mankind.[2] This seems to be the central question surrounding which many other questions have arisen. Briefly those other questions are: what is meant by the expression "common heritage of mankind" in a legal context? Should this expression, as a legal principle or as a concept, be applied to both exploration and exploitation of the natural resources? If so, how

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[1]For those provisions of the draft treaty that were approved or taken note of by the Legal Sub-Committee, see U.N. Doc. A/AC.105/101, para. 21 (1972); U.N. Doc. A/AC.105/115, para. 17 (1973).

[2]In 1973, two working papers, one by the Soviet Union and the other by Argentina, on the question of the "Common Heritage of all Mankind" were presented to the Legal Sub-Committee. *See* U.N. Doc. A/AC.105/115, Annex I (7), (11) (1973).

should it be applied in concrete cases in relation to the principle of the freedom of exploration and use of outer space? In particular, what activities would be permitted with regard to the moon's resources before an agreed international regime governing exploitation of those resources is established and in force?

At the sixteenth session of the Legal Sub-Committee, difference of views on the above-mentioned questions remained unchanged. Essentially, certain members considered "common heritage of all mankind" as a philosophical concept lacking legal content which had no place in a legal instrument, while others maintained that it was a legal concept and a prerequisite for the elaboration of a treaty relating to the moon. Some members held the view that activities should be permitted only for scientific purposes and that no commercial exploitation of the natural resources should take place before the establishment of the international regime; others thought that utilization of the moon and its natural resources should also be allowed for other experimental purposes; still others were of the opinion that utilization should be allowed for any peaceful purpose pending the establishment of the international regime.

In the Working Group, a new idea was introduced as an informal proposal for the drafting of an additional protocol to the treaty concerning the legal regime of natural resources of the moon and other celestial bodies, but it did not receive support.

As reported by the Chairman of the Working Group, no consensus could be realized on the question of the natural resources and, consequently, no text thereon was agreed upon at the session despite the efforts made by a great number of delegations.[3]

II. ELABORATION OF PRINCIPLES GOVERNING THE USE BY STATES OF ARTIFICIAL EARTH SATELLITES FOR DIRECT TELEVISION BROADCASTING

Consideration of this item by the Legal Sub-Committee at its previous sessions resulted in the formulation of nine principles on the following subjects: purposes and objectives, applicability of international law, rights and benefits; international co-operation; State responsibility; duty and right to consult; peaceful settlement of disputes; copyright and neighboring rights; and notification to the United Nations.[4] When its sixteenth session opened this year, the Legal Sub-Committee had before it three remaining issues, *i.e.*, consent and participation, program content and unlawful/inadmissible broadcasts.[5]

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[3]U.N. Doc. A/AC.105/196, Annex I (1977).

[4]For texts of these principles, see U.N. Doc. A/AC.105/171, Annex II, at 1-3 (1976).

[5]For the draft texts on these subjects on which there was an incomplete exchange of views in 1975 and 1976, see *id.* at 3-5.

In accordance with its practice, the Sub-Committee reestablished its Working Group on this item. Of the remaining issues, the Working Group first took up the principle of "consent and participation." Having considered the existing texts of this principle, and in an effort to harmonize the different views of delegations as well as to facilitate general agreement, the Working Group sought to replace this subject tentatively with a principle on "consultation and agreements between States" and proceeded to formulate a tentative text of a principle under this heading. The replacement was an attempt to reconcile two basic different approaches to the issue; namely, free flow of information and prior consent of the receiving State. The same issue also arose in the context of the draft preamble submitted by Canada and Sweden to the Working Group for consideration.

Discussion of this issue in the Working Group also brought out differences of views on other relevant points such as the extent to which the results of the World Administrative Radio Conference for the Planning of Broadcasting Satellite Service (WARC) convened by the International Telecommunication Union in January- February 1977 at Geneva were relevant, and the question whether a principle on consultation and agreements could replace the principle on "right and duty to consult" formulated last year.

The views on the various aspects of the issue were summarized in the report of the Chairman of the Working Group as follows:[6]

> The view expressed in the United Kingdom Working Paper (A/AC.105/c.2/L.110) and supported by some other delegations was that, as a result of the Agreement and Plan concluded at the WARC as well as other ITU instruments, there would be little intentional State to State direct television broadcasting and minimal spill-over problems and thus no need to draw up a principle on consent and participation.
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> The view was expressed by other delegations that the ITU had done useful work in resolving technical problems, which would undoubtedly promote orderly utilization of satellites for direct television broadcasting, but that the results of the ITU Conference reflect broad international recognition that direct television broadcasting should be based solely on prior agreements between the interested States, and thus confirmed the necessity for a principle on consultation and agreements. Other delegations considered that there was no contradiction between the principle of free flow of information and the principle of respect for State sovereignty and non-interference in internal affairs of States.
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> The view was also expressed that the use of artificial earth satellites for direct television broadcasting belongs to the field of relations among States and not to the field of human rights. Some delegations were of the opinion that the drafting of the principle on "consultation and agreements between States" was necessary and compatible with the free flow of information and ideas.
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> Still other delegations held the view that a principle on consent and participation is not only unnecessary but would contravene the principle of free flow of information

[6]U.N. Doc. A/AC.105/196, Annex II, para. 5 (1977).

regardless of national frontiers as set forth in instruments of the United Nations relating to universal human rights.

Of primary importance to some delegations was the necessity to delete the principle on "duty and right to consult" formulated last year as well as the proposed principles in "programme content" and "illegal broadcasts", as the formulation of a principle on "consultation and agreements between States" would make these texts redundant, while other delegations were of the view that the draft principle on "consultation and agreements between States" did not exhaust the content of the principle of "duty and right to consult" already formulated and that the proposed principles on "programme content" and "illegal broadcasts" might be deleted only if the principle on "duty and right to consult" is retained.

Insofar as the draft preamble was concerned, no agreement could be reached on a provision relating mainly to free dissemination of information on the one hand and respect for the sovereign rights of States on the other. Several paragraphs reflecting such ideas that were put forward for inclusion in the preamble were appended to the report of the Chairman of the Working Group as a basis for further consideration.[7]

The texts of the principle on consultation and agreements between States, which is in square brackets, as well as of the preamble as formulated by the Working Group read as follows:

CONSULTATION AND AGREEMENTS BETWEEN STATES

[[A/ direct television broadcasting [satellite service] specifically directed at a foreign State [, in those cases in which the coverage of that State is permitted under the relevant instruments of the International Telecommunication Union,] shall be based on appropriate agreements and/or arrangements between the broadcasting and receiving States], in order to facilitate the freer and wider dissemination of information of all kinds and to encourage co-operation in the field of information and the exchange of information with other countries.

For that purpose [in those cases in which the coverage of that State is permitted under the relevant instruments of the International Telecommunication Union,] a State which proposes to establish or authorize the establishment of a direct television broadcasting [service] by means of artificial earth satellites specifically directed at a foreign State shall without delay notify that State of such intention and shall enter into consultations with that State if the latter so requests. No such agreements and/or arrangements shall be required with respect to the overspill of the radiation of the satellite signal within the limits established under the relevant instruments of the International Telecommunication Union.]

DRAFT PREAMBLE

The General Assembly,

In view of the actual and potential benefits for all mankind [States, peoples and individuals] in using international direct television broadcasting by means of artificial

[7]For texts of those paragraphs, see U.N. Doc. A/AC.105/196, Annex II, Appendix (1977). Words in square brackets are those upon which agreement has not been reached.

earth satellites; . . . .[8] *Desiring* to safeguard the legitimate rights and interests of all States and to encourage orderly development on an equitable basis of this new and promising means of television broadcasting; [Recognizing the unique characteristics of such satellite broadcasting [not encountered in other forms of broadcasting] which necessitates besides relevant technical regulations also specific legal principles [solely][9] applicable in this field;]

Considering that States, as well as international governmental and non-governmental organizations, including broadcasting associations, should base their activities in this field upon and encourage international co-operation;

Solemnly declares that in international direct television broadcasting by means of artificial earth satellites, States should be guided by the following principles . . . .

The Working Group expressed the hope, which was endorsed by the Sub-Committee, that in view of the progress made during the session, all delegations would try their best to overcome the remaining differences so that the task entrusted to the Sub-Committee in General Assembly resolution 31/8 to complete the elaboration of principles would be fulfilled at the forth-coming session of the Committee on the Peaceful Uses of Outer Space to be held from June 20 to July 1 in Vienna.

III. LEGAL IMPLICATIONS OF REMOTE SENSING OF THE EARTH FROM SPACE

At the previous sessions of the Legal Sub-Committee, the Working Group on this item had formulated five draft principles on the basis of certain common elements that had been identified in the positions of delegations. These draft principles concern such matters as the carrying out of remote sensing for the benefit and in the interests of all countries; the conduct of remote sensing in accordance with international law including the Charter of the United Nations and the Outer Space Treaty; the promotions of international cooperation in remote sensing programs; the protection of the natural environment of the earth; and technical assistance.[10]

This year the Sub-Committee reestablished the Working Group which from the outset agreed that it would first endeavor to formulate draft principles on the basis of the three common elements identified by it last year. The Working Group accomplished this task by formulating three draft principles dealing respectively with such matters as the coordinating role of the United Nations and its relevant specialized agencies in the area of remote sensing and notification to the Secretary-General of the United Nations

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[8]This blank was left in the preamble for any further consideration of the paragraphs proposed and referred to above.

[9]A number of delegations accepted the preamble on the understanding that the word "solely" would be included therein.

[10]For texts of these draft principles, see U.N. Doc. A/AC.105/171, Annex III, para. 6 (1976).

of remote sensing activities; dissemination of information on impending natural disasters; and the using of remote sensing data or information without detriment to or in a manner compatible with the legitimate rights and interests of other States.[11]

The Working Group then proceeded to identify other common elements and draft further principles. It did this by formulating three more draft principles dealing respectively with such matters as the provision of relevant technical information involving possible operational systems, state responsiblity and access to data obtained by remote sensing.[12]

Extensive discussion took place in the Working Group on a working paper submitted by Mongolia last year which linked permanent sovereignty of States over their natural resources to remote sensing from space. The views expressed on this issue and the result of the discussion were summarized in the report of the Chairman of the Working Group as follows:

> Many delegations stated that draft principles on remote sensing should contain a text concerning full and permanent sovereignty of all States and peoples over their wealth and natural resources as well as the inalienable right to dispose of these resources and of information with respect thereto. Other delegations, while in principle not objecting to the inclusion of a principle of the permanent sovereignty of States over their natural resources, were of the opinion that there was no such sovereignty with respect to information. Still other delegations held the view that no such principle should be included in the draft principles as it had no relevance to remote sensing and there was thus no common element. In view of this position no agreement on a common element with respect to this question could be reached in the course of these discussions. A text of a possible draft principle was nevertheless prepared, parts of which commanded a substantial degree of support from among the members of the Working Group, on which, however, no consensus could be achieved. This text is thus set forth wholly within special brackets in appendix A to this report for the reason that some delegations felt that an unagreed text should not be included in appendix A.

The Working Group also considered the question of a review clause on the basis of an informal working paper submitted by the delegation of Canada. After an intensive discussion, the conclusion was reached that a decision on such a clause was premature and that the matter would require further consideration at a later stage.

It should be noted that all the eleven draft principles formulated by the Working Group contain square brackets around words on which no agreement was reached. Two sets of square brackets appear in each draft principle as they concern two general questions. The first is whether the principles should deal with remote sensing of the natural resources of the earth only or should cover also the environment of the earth. The second question relates to the nature of the instrument in which the principles are

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[11]For texts of these draft principles, see U.N. Doc. A/AC.105/196, Annex III, Appendix A (1977) (Principles VI, VII and VIII).

[12]For texts of these draft principles, see *id.*, Principles IX, X and XI.

to be embodied; hence square brackets were put around the alternative words "shall" and "should." Although the Working Group had hoped that at the last stage of its work it would attempt to remove some of the square brackets in the principles formulated, it was unable to do so owing to lack of time.

IV. MATTERS RELATING TO DEFINITION AND/OR DELIMITATION OF OUTER SPACE AND OUTER SPACE ACTIVITES

While there were only several statements made in the general exchange of views on this item[13] and no detailed discussion took place due to lack of time, a new idea was expressed by one delegation that the methods for arriving at a definition of outer space could be initially to find common points in the views expressed and the proposals put forward, then to define a set of problems and establish provisional criteria for a definition, and finally to work out each idea in detail. Also, for the first time in the Sub-Committee, the question of the geostationary orbit in relation to the definition and/or delimitation of outer space was introduced and some delegations suggested that the Outer Space Comittee might also wish to consider this matter in detail.

[13]See U.N. Doc. A/AC.105/C.2/SR. 279-281 (1976). For the views expressed on this question in United Nations organs since 1970 and in literature, see U.N. Doc. A/AC.105/C.2/7/Add. 1 (1976).